.2 the method employed;

.3 reference to or copies of scientific documentation attesting the accuracy and validity of the method employed;

RESOLUTION MEPC.208(62)
Adopted on 15 July 2011

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SOURCE: MEPC.208(62).pdf
.1 the results of the analyses;

.2 the method employed;

.3 reference to or copies of scientific documentation attesting the accuracy and validity of the method employed;

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.4 the names of persons performing the analyses and their experience; and

.5 a description of the quality assurance measures of the analyses;

.5 statements of persons questioned;

.6 statements of witnesses;

.7 photographs of the hull and sample areas; and

.8 a copy of the IAFS Certificate, including copies of relevant pages of the Record of Anti-fouling Systems, log books, MSDS or similar, declaration of compliance from the anti-fouling system manufacturer, invoices from the shipyard and other dry dock records pertaining to the anti-fouling system.

4.4 All observations, photographs and documentation should be supported by a signed verification of their authenticity. All certifications, authentications or verifications should be in

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4.4 All observations, photographs and documentation should be supported by a signed verification of their authenticity. All certifications, authentications or verifications should be in accordance with the laws of the State preparing them. All statements should be signed and dated by the person making them, with thei r name printed clearly above or below the signature.

4.5 The reports referred to under paragraphs 2 and 3 of this section should be sent to the flag State. If the coastal State observing the contravention and the port State carrying out the investigation on board are not the same, the port State carrying out the investigation should also send a copy of its findings to the coastal State.

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APPENDIX 1

SAMPLING

Considerations related to brief sampling may be found in section 2.1 of Guidelines for brief sampling of anti-fouling systems on ships (resolution MEPC.104(49)).

Any obligation to take a sample should be subject to practical feasibility or to constraints

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sampling of anti-fouling systems on ships (resolution MEPC.104(49)).

Any obligation to take a sample should be subject to practical feasibility or to constraints relating to the safety of persons, the ship or the port.

The PSCO should consider the following:

- liaise with the ship on the location and time needed to take samples; the PSCO should verify that the time required will not unduly prevent the loading/unloading, movement or departure of the ship;

- do not expect the ship to arrange safe access but liaise with the ship over the arrangements that the port State competent authority has made, for example boat, cherry-picker, staging, etc.;

- select sampling points covering representative areas;

- take photographs of the hull, sample areas and sampling process;

- avoid making judgements on the quality of the paint (e.g., surface, condition, thickness, application);

- the need of inviting the ship representative's presence during brief sampling to ensure that the evidence is legally obtained;

- complete and sign the inspection report form together with the included

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thickness, application);

- the need of inviting the ship representative's presence during brief sampling to ensure that the evidence is legally obtained;

- complete and sign the inspection report form together with the included sampling record sheets (to be filled in by the sampler), as far as possible, and leave a copy with the ship as a proof of inspection/sampling;

- inform the next port State where the inspected ship is to call;

- agree with or advise the ship on to whom the ship's copy of the finalized inspection report will be sent in cases when it cannot be completed in the course of the inspection; and

- ensure that receipts identifying the persons having custody and receiving transfer of the samples accompany the samples are filled in to reflect the transfer chain of the samples. PSCOs are reminded that the procedures set in national legislation regarding custody of evidence are not affected by the regulation. These guidelines therefore do not address this issue in detail.

1 Sampling methodologies

It is to the discretion of the port State to choose the sampling methodology. The Guidelines

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regulation. These guidelines therefore do not address this issue in detail.

1 Sampling methodologies

It is to the discretion of the port State to choose the sampling methodology. The Guidelines for brief sampling of anti-fouling systems on ships adopted by resolution MEPC.104(49) allow that any other scientifically recognized method of sampling and analysis of AFS controlled by the Convention than those described in the appendix to the Guidelines may be used (subject to the satisfaction of the Administration or the port State). The sampling methodology will depend, inter alia , on the surface hardness of the paint, which may vary considerably. The amount of paint mass removed may vary correspondingly.

Sampling procedures, based on the removal of paint material from the hull, require the determination of paint mass. It is important that procedures used are validated, produce unambiguous results and contain an adequate control.

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determination of paint mass. It is important that procedures used are validated, produce unambiguous results and contain an adequate control.

The competent port State authority can decide to contract specialist companies to carry out sampling. In this case the PSCO should attend the ship during the sampling procedure to ensure the liaison and arrangements mentioned above are in place.

If a specialist company is not used, the port State competent authority should provide appropriate training to the PSCO in the available sampling methods and procedures and ensure that agreed procedures are followed.

The following general terms should be observed:

- the PSCO should choose a number of sample points preferably covering all the representative areas of the hull, but it is desirable to have at least eight (8) sample points equally spaced down and over the length of the hull, if possible divided over PS and SB (keeping in mind that different parts of the hull may be treated with different anti-fouling systems);

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sample points equally spaced down and over the length of the hull, if possible